

HOUSE No. 4765

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 18, 2025.

The committee on Ways and Means, to whom was referred the Senate Bill relative to amending certain use restrictions for the Foxborough State Hospital (Senate, No. 2141), reports recommending that the same ought to pass with amendments striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 4765; by inserting the following emergency preamble:

“Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the release or amendment of certain use restrictions of land in the town of Foxborough, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.”; and by striking out the title and inserting in place thereof the following title: “An Act relative to the release or amendment of certain use restrictions for the Foxborough State Hospital.”.

For the committee,

AARON MICHLEWITZ.

HOUSE No. 4765

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General
2 Laws, chapter 312 of the acts of 1996 or any other general or special law to the contrary, the
3 commissioner of capital asset management and maintenance may release or amend certain use
4 restrictions held by the commonwealth for municipal recreational purposes and public safety and
5 other municipal building purposes on all or a portion of certain parcels of land on Payson road in
6 the town of Foxborough. The use restrictions are described in deeds recorded in the Norfolk
7 registry of deeds in book 20013, page 470 and book 13416, page 205 and shown as parcels H-1
8 and H-2 on a plan entitled “Approval Not Required Subdivision Plan”, prepared for Foxborough
9 State Hospital, dated December 10, 1998 and prepared by Rizzo Associates Inc., recorded in the
10 Norfolk registry of deeds in plan book 465, page 256. The consideration for the release or
11 amendment of the use restrictions shall be a use restriction for housing purposes, which may
12 include, but shall not be limited to, market rate housing and senior housing purposes; provided,
13 however, that the town of Foxborough may subsequently convey all or a portion of the parcels to
14 a third party for housing purposes.

15 SECTION 2. The town of Foxborough shall be responsible for all costs and expenses of
16 any transaction authorized pursuant to section 1 as determined by the commissioner of capital

17 asset management and maintenance, including, but not limited to, the costs of any engineering,
18 surveys, appraisals, title examinations and recording fees; by inserting the following emergency
19 preamble:

20 *“Whereas, The deferred operation of this act would tend to defeat its purpose, which is to*
21 *authorize forthwith the release or amendment of certain use restrictions of land in the town of*
22 *Foxborough, therefore it is hereby declared to be an emergency law, necessary for the immediate*
23 *preservation of the public convenience.”; and by striking out the title and inserting in place*
24 *thereof the following title: “An Act relative to the release or amendment of certain use*
25 *restrictions for the Foxborough State Hospital.”.*